# Master Services Agreement — Acme Cloud Solutions

Contract ID: MDC-VC-2024-0117

Parties: Meridian Dynamics Corp ("Client") and Acme Cloud Solutions, Inc. ("Vendor")

Effective Date: February 15, current fiscal year | Term: 3 years, automatic 1-year renewal unless terminated with 90 days' written notice

Contract Owner (Client side): Priya Raman, Head of Procurement | Legal Reviewer: Elena Petrova, General Counsel

## Article 1 — Scope of Services

Acme Cloud Solutions shall provide cloud compute, storage, and managed database services in support of Meridian Dynamics Corp's Project Helios cloud migration initiative, as further detailed in Exhibit A (Statement of Work).

## Article 2 — Fees and Payment

2.1 Total contract value is estimated at $3,200,000 over the initial 3-year term, based on projected usage tiers.

2.2 Invoices are issued monthly in arrears and payable net-30.

2.3 Any single change order or usage commitment exceeding $50,000 requires written approval per Meridian Dynamics Corp's internal Purchase Approval Workflow (see 05_project_approval_workflow) prior to execution.

## Article 3 — Service Level Agreement (SLA)

3.1 Acme Cloud Solutions guarantees 99.95% monthly uptime for production workloads.

3.2 Service credits of 5% of monthly fees are issued for each 0.1% shortfall below the guaranteed uptime, up to a maximum of 50% of monthly fees in any billing period.

3.3 Planned maintenance windows require 7 days' advance notice.

## Article 4 — Security and Compliance

4.1 Acme Cloud Solutions is classified as a Tier 1 (High Risk) vendor under Meridian Dynamics Corp's IT Security Policy (SEC-POL-004), Section 3.1.

4.2 Vendor shall undergo an annual SOC 2 Type II audit and provide the audit report to Meridian Dynamics Corp's IT Security team (David Osei) within 30 days of completion.

4.3 Vendor shall maintain encryption standards consistent with Section 6.2 of Meridian Dynamics Corp's IT Security Policy (AES-256 at rest, TLS 1.2+ in transit).

4.4 This agreement was most recently re-approved on the annual review cycle by David Osei (IT Security) and Aisha Malik (Compliance) as of the current fiscal year's Q1 vendor review.

## Article 5 — Data Processing

5.1 A separate Data Processing Agreement (DPA), attached as Exhibit B, governs the handling of any personal data processed through Acme Cloud Solutions infrastructure.

5.2 Data residency for European operations (supporting the Krakow office) is limited to EU-based data centers.

## Article 6 — Termination

6.1 Either party may terminate for material breach with 30 days' written notice and opportunity to cure.

6.2 Meridian Dynamics Corp may terminate for convenience with 90 days' written notice, subject to early-termination fees described in Exhibit C.

## Article 7 — Renewal and Amendment History

7.1 This contract's most recent amendment (Amendment No. 2) was executed to expand storage capacity in support of Project Helios's Phase 2 rollout, increasing the annual committed spend by $410,000.

7.2 Amendment No. 2 was approved through the standard approval chain: Priya Raman (Procurement) -> Sarah Chen (CFO) -> Tom Reyes (CEO), consistent with the $50,000 threshold rule in Article 2.3.

## Signatures

Meridian Dynamics Corp: Tom Reyes, Chief Executive Officer

Acme Cloud Solutions, Inc.: Rebecca Sun, VP of Enterprise Sales

### Exhibit A — Statement of Work (Summary)

| Item | Detail |
|---|---|
| Compute | 400 vCPU reserved instances |
| Storage | 2 PB managed object storage |
| Managed Database | 3 production PostgreSQL clusters supporting Project Helios workloads migrated from the Austin data center |

### Exhibit B — Data Processing Agreement (Summary)

Standard contractual clauses apply for cross-border data transfer between the United States and the European Union, covering data originating from the Krakow office.

### Exhibit C — Early Termination Fee Schedule

| Termination Timing | Fee (% of remaining contract value) |
|---|---|
| Year 1 | 40% |
| Year 2 | 25% |
| Year 3 | 10% |